

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 09/04/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless, by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and
SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

[https://contracosta-courts-
ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1](https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1)

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
*HEARING ON MOTION IN RE: STRIKE PLTFs 2ND AMENDED COMPLAINT
FILED BY: MAMPALAM, THOMAS J, MD
TENTATIVE RULING:

The hearing on this motion is continued to September 11, 2026 at 9:00 a.m.

2. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
HEARING ON DEMURRER TO: PLTFs 2ND AMENDED COMPLAINT
FILED BY: MAMPALAM, THOMAS J, MD
TENTATIVE RULING:

The hearing on this motion is continued to September 11, 2026 at 9:00 a.m.

3. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
*HEARING ON MOTION IN RE: STRIKE PLAINTIFF'S 2ND AMENDED COMPLAINT
FILED BY: AMIRDELFAM, KASRA, MD
TENTATIVE RULING:

The hearing on this motion is continued to September 11, 2026 at 9:00 a.m.

4. 9:00 AM CASE NUMBER: C22-02691
CASE NAME: DUNCAN MILLER VS. THOMAS MAMPALAM, MD
HEARING ON DEMURRER TO: PLAINTIFF'S 2ND AMENDED COMPLAINT
FILED BY: AMIRDELFAM, KASRA, MD
TENTATIVE RULING:

The hearing on this motion is continued to September 11, 2026 at 9:00 a.m.

5. 9:00 AM CASE NUMBER: C23-01219
CASE NAME: ELVECIO MACHADO VS. GINO CARUSO
HEARING ON DEMURRER TO: CROSS-COMPLAINT
FILED BY: MACHADO, ELVECIO
TENTATIVE RULING:

Before the Court is the unopposed Demurrer, filed May 29, 2026, of Plaintiffs and Cross-Defendants (Cross-Defendants) Elvecio Machado and Tatiana Arambulo to the Verified Cross-Complaint filed April 27, 2026 of Defendants and Cross-Complainants (Cross-Complainants) Gino Caruso and Laudelino Caruso.

The motion was originally set to be heard on October 30, 2026. However, during a Case Management Conference on June 9, 2026 with all parties present, the court advanced the hearing date to September 4, 2026. On August 28, 2026 – five court days before the September 4, 2026 hearing date, Cross-Complainants Gino Caruso and Laudelina Caruso, representing themselves, filed a pleading styled, “Defendants/Cross-Complainants Gino Caruso and Laudelina Caruso’s Notion of Motion and Motion for Continuance of Hearing on Cross-Defendants’ Demurrer and Motion to Strike; Request for an Order Shortening Time and Earliest Available Hearing” in which they requested, among other things, that the Court “hear and determine the request for continuance first at the September 4 hearing, before proceeding with the Demurrer and Motion to Strike.” This request is **denied**.

The Cross-Complainants’ opposition papers were due 9 court days prior to the hearing date. Cross-Complainants did not file an opposition to the instant motion. The Cross-Complaints’ August 28, 2026 request for the court to hear a motion to continue the hearing set for September 4, 2026 is denied as untimely. The request for an Order Shortening Time is denied as impractical. The Cross-